

SENATE No. 339

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring high quality pre-kindergarten education.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 339

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 339) of Sal N. DiDomenico for legislation to ensure high quality pre-kindergarten education. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 264 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring high quality pre-kindergarten education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 15D of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 13 the following section:-

3 Section 13A. (a) The department of early education and care, in consultation with the
4 department of elementary and secondary education, shall develop and administer the high quality
5 pre-kindergarten education grant program to support the implementation of high quality pre-
6 kindergarten programs for children between the ages of 2 years and 9 months and the age a child
7 becomes eligible for kindergarten in the district where he or she resides. The grants shall be used
8 to invest in a high quality, mixed-delivery early education system in order to reduce the
9 achievement gap and improve third-grade reading scores. Eligible grantees shall include

individual school districts and collaborations of multiple school districts in a region. Proposals must include partnerships with licensed community-based early learning programs.

(b) The departments shall establish requirements for grant applicants which shall include, but not be limited to, the following: (1) a tracking system for preschool students in the program using the state student identifier system; (2) a child to instructor ratio of no more than 10 to 1; (3) tactics to engage families in the enrollment process and implementation of the plan required under subsection (c), and methods to ensure a high level of participation by families with 3 and 4 year olds; (4) teacher qualifications and on-going professional development requirements; (5) full school day program in the district; (6) a class size of no more than 20 preschool students; (7) inclusion of children with disabilities; (8) instructional staff salaries and benefits comparable to the responding districts salaries and benefits for kindergarten to high school staff; (9) developmentally and linguistically appropriate instruction; (10) evidenced based curricula; (11) accommodations and support for access and participation in all learning opportunities by each child; (12) a learning environment aligned with the state early learning and development standards; (13) on-site or access to comprehensive services for children; (14) partnership with, and promotion of, community service providers for families to support children's learning and development; (15) evidenced based health and safety standards; (16) a timetable for implementation; (17) program evaluation and data collection systems to ensure continuous improvement; (18) a description of the learning environment reflecting the state early learning and development standards; (19) a description of the physical structures for the education of the students; (20) a teacher evaluation system and professional improvement program; and (21) a vision and initial plan for serving children from birth to age 3.

Grants shall be awarded based on two primary criteria: readiness and need.

Readiness shall be defined as the community having in place an EEC-approved plan for preschool expansion. All grantees must meet this criteria. Plans must include: (1) detailed assessment of the local early education and care system, including supply of high-quality preschool classrooms, qualifications of teachers, facilities, and transportation; (2) estimate of the percentage of high-needs children entering kindergarten annually with no prior preschool experience; (3) a profile of family and community needs and assets, including parent perspectives and demand for preschool; (4) list of local resources such as funding or in-kind support, recent early learning initiatives, strategic plans, professional development strategies, and evidence of collaboration within the mixed-delivery system of early education and care; and (5) proposed program budgets.

Need shall be defined by the percentage of high-need students, as defined by the department of elementary and secondary education, enrolled in a grantee's school district. In any given fiscal year, the department shall award implementation grants in order from highest need to lowest need until that fiscal year's grant funds are expired.

In awarding grants, preference shall be given to districts designated as underperforming or chronically underperforming pursuant to section 1J of chapter 69.

(c) Each recipient of the grant shall establish a plan to implement the requirements set forth in subsection (b) and any other requirements as may be prescribed by the board of early education and care. Each district shall establish a local governing council to implement and oversee all aspects of the plan. Districts shall provide on a quarterly basis reports to the department of early education and care on all aspects of the plan. The district and the local council shall implement the plan as approved within the period of time approved by the

55 department. Failure to satisfactorily implement the plan within the approved period of time shall
56 result in the termination of the plan and reversion of the grant funds to the department.

57 (d) The board of early education and care shall promulgate regulations to implement the
58 provisions of this act within six months of the effective date including guidelines for membership
59 to local governing councils in each recipient district and evaluation criteria required in the
60 quarterly reports. A grant awarded pursuant to this subsection shall require that recipients
61 undertake ongoing evaluations of the implementation of the plan and all its aspects.

62 The commissioner of early education and care shall annually evaluate the effectiveness of
63 programs established under this section, including the potential for replicating such programs
64 throughout the commonwealth. The commissioner shall also provide technical assistance to
65 school districts seeking to replicate programs funded under this section.